

24NWCV03111 24NWCV03111

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Case Number: 24NWCV03111 Hearing Date: July 9, 2026 Dept: L

Plaintiff Yeva

Harutyunyan's Motion to Compel the Deposition of Defendant BMW of North America, LLC's Person Most Knowledgeable and Production of Documents is GRANTED.

Plaintiff to give notice.

Background

This is a lemon law action regarding 2022 BMW X6. On September 10, 2024, Plaintiff Yeva Harutyunyan ("Plaintiff") filed action against Defendants BMW of North America, LLC, Mckenna BMW, and Does 1 to 50. The Complaint alleges the following: 1) Violation of the Song-Beverly Consumer Warranty Act Breach of Express Warranty, 2) Violation of the Song Beverly Consumer Warranty Act Breach of Implied Warranty, and 3) Violation of Business and Professions Code § 17200.

Plaintiff now moves for an order 1) compelling the deposition of Defendant BMW of North America, LLC's ("Defendant") Person Most Knowledgeable ("PMK") and production of documents, and 2) striking Defendant's objections to the Matters for Examination and Requests for Production of Documents.

No opposition has been filed as of July 8, 2026.

Legal Standard

Under Code of Civil Procedure

section 2025.450, subdivision (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subdivision (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

"[W]hen the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, [the

motion shall be accompanied] by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc. § 2025.450 subd. (b)(2).)

Plaintiff's meet and confer efforts are detailed in the next section. The Court finds the meet and confer requirement has been met.

Discussion

On March 4, 2025, Plaintiff served a Notice of Deposition of Defendant's PMK, setting the deposition for March 25, 2025. (Terzian Decl., ¶ 15, Exh. 3.)

On March 20, 2025, Defendant served its objections to the Notice of Deposition, stating that it would not produce its PMK on the noticed deposition date. (Terzian Decl., ¶ 16, Exh. 4.)

On March 23, 2025 and April 4, 2025, Plaintiff requested alternative dates for the deposition. (Terzian Decl., ¶¶ 17-18, Exhs. 5-6.) Defendant responded that its PMK was on medical leave until April 14, 2025 and that it would provide alternative dates upon the PMK's return. (Terzian Decl., ¶ 19, Exh. 7.)

On September 23, 2025, after not

hearing from Defendant for five months, Plaintiff served a First Amended Notice of Deposition of Defendant's PMK, setting the deposition for December 19, 2025. (Terzian Decl., ¶ 20, Exh. 8.)

On December 18, 2025, Defendant served its objections to the Notice of Deposition, stating that it would not produce its PMK on the noticed deposition date. (Terzian Decl., ¶ 21, Exh. 9.) The parties further met and conferred regarding a deposition date, and Defendant indicated that its PMK had no availability until June 9, 2026. (Terzian Decl., ¶¶ 22-26, Exhs. 10-14.)

On January 26, 2026, the parties held a telephonic meet and confer, where Plaintiff accepted June 9, 2026 deposition date. (Terzian Decl., ¶ 27, Exh. 15.) Plaintiff served a Second Amended Notice of Deposition. (Terzian Decl., ¶ 28, Exh. 16.)

On June 1, 2026, Defendant served its objections to the Notice of Deposition, stating that it would not produce its PMK on the noticed deposition date. (Terzian Decl., ¶ 29, Exh. 17.)

The parties further met and conferred regarding alternative dates, and Plaintiff accepted a June 22, 2026 deposition date. (Terzian Decl., ¶¶ 30-34, Exhs. 18-22.) It was later determined by Defendant that such date was offered in error, and Defendant's PMK would not be available under July 14, 2026, a date past the discovery cutoff date at the time. (Terzian Decl., ¶¶ 35-38, Exhs. 23-26.) Plaintiff filed this Motion on June 16, 2026.

No opposition has been filed.

The Court notes that, since this Motion was filed, trial has been continued to October 28, 2026. (See 6/18/26 Minute Order.) Thus, the new discovery cutoff date is September 28, 2026.

The Court finds that the parties have been unable to determine a mutually agreeable deposition date for Defendant's PMK despite Plaintiff's efforts. The Court thus grants Plaintiff's Motion.

Matters for Examination and Requests for Documents

Plaintiff's Notices of

Deposition identify thirty-four (34) Matters for Examination and sixteen (16)

Requests for Production of Documents.

Defendant objects to each

Matter for Examination on grounds that they are vague, ambiguous, overly broad, irrelevant, not reasonably particularized, protected by privileges, confidential, and/or calls for expert testimony or the premature disclosure of expert information.

Defendant objects to each

Request for Production of Documents on grounds that they are vague, ambiguous, overly broad, not reasonably particularized, protected by privileged, and/or confidential.

The Court notes that, under

Code of Civil Procedure section 2025.230, Plaintiff need only provide matters for examination to guide Defendant in selecting a PMK for deposition. Code of Civil Procedure section 2025.230 provides, in relevant part, that "[i]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent."

A request for documents in

conjunction with a deposition notice is not the equivalent of a request for production of documents under Code of Civil Procedure section 2031.010 et seq. A request for production of documents in a deposition notice need only specify with reasonable particularity the materials or category of materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) A motion to compel production of documents related to a deposition only requires a showing of "good cause justifying production." (Code Civ. Proc., § 2025.450, subd. (b)(1).) "Objections to the competency of the deponent, or to the relevancy, materiality, or admissibility at trial of the testimony or of the materials produced are unnecessary and are not waived by failure to make them before or during the deposition." (Code Civ. Proc., § 2025.460 subd., (c).)

The Court finds that

Plaintiff's Matters for Examination and Requests for Production of Documents are reasonably particularized. Defendant offers no opposition suggesting otherwise.

Conclusion

Based on the foregoing,

Plaintiff's Motion to Compel the Deposition of Defendant's Person Most Knowledgeable and Production of Documents is granted. Defendant's PMK is ordered to appear for a deposition and produce the requested documents. The parties shall meet and confer to determine the date, time, and location of the depositions, which shall take place no later than 30 days from the date of the Court's issuance of this order. The date may be extended by agreement of the parties.